

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, DC 20250

DEPARTMENTAL REGULATION	NUMBER: DR 2340-001
SUBJECT: Payment of MEDEVAC and Medical Expenses of Employees on Overseas Temporary Duty Assignment	DATE: October 1, 2020
OPI: Foreign Agricultural Service, Office of the Chief Operating Officer	EXPIRATION DATE: October 1, 2025

<u>Section</u>	<u>Page</u>
1. Purpose	1
2. Scope	1
3. Special Instructions/Cancellations	2
4. Policy	2
5. Procedures	4
6. Roles and Responsibilities	5
7. Inquiries	6
Appendix A – Acronyms and Abbreviations	A-1
Appendix B – Definitions	B-1
Appendix C – Authorities and References	C-1
Appendix D – Frequently Asked Questions	D-1
Appendix E – Points of Contact	E-1

1. PURPOSE

This Departmental Regulation (DR) establishes the policy and procedures for payment of medical expenses (including the expense of any medical evacuation or “MEDEVAC”) of USDA employees who are on official temporary duty assignment (TDY) overseas. The information provided in this DR is based on guidance provided by the Department of State’s (DOS) *Foreign Affairs Manual* ([FAM](#)), [16 FAM 300](#), *Medical Travel* and [16 FAM 500](#), *Payment of Medical Services*.

2. SCOPE

This DR covers medical expenses related to overseas TDY travel by employees of USDA, contractors, fellows, scholars, summer interns hired in the United States, and other categories

of employees who are on official USDA travel and have a cleared eCountryClearance (eCC). It does not cover situations involving domestic TDY travel or payment of per diem expenses.

3. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a. This DR provides instruction for situations specific to USDA employees that are not addressed in [16 FAM](#), *Medical*;
- b. USDA will apply direction provided in 16 FAM 300 and 16 FAM 500 with respect to the payment of medical expenses of its employees working abroad in TDY status.
- c. The policy is effective immediately and will remain in effect until superseded or expiration.
- d. The terms “insurance” or “health insurance” used throughout this directive specifically refer to employee insurance coverage with benefits payable to employees who obtain medical services while overseas.
- e. For purposes of this DR, “employing agency” as referenced in FAM refers to USDA.
- f. Specific to the payment of medical expenses associated with MEDEVAC, the term “home agency” used throughout this document refers to the sponsoring Mission Area, agency, or staff office of the Government agency that is providing the funding and/or reimbursement for the travel.

4. POLICY

- a. Medical Expenses
 - (1) Payment of employee medical expenses by USDA Mission Areas, agencies, and staff offices in accordance with FAM requirements and procedures will depend upon the following factors: whether the employee has been hospitalized, whether the employee is insured, whether the expenses relate to a pregnancy, and the extent to which the employee’s primary insurer provides coverage. ([16 FAM 521](#), *Applicability*; [16 FAM 522](#), *Responsibility*)
 - (2) Employees should obtain health insurance coverage, either under the *Federal Employees Health Benefits* ([FEHB](#)) Program or by contract with a private insurer. (16 FAM 522)
 - (3) Subject to certain statutory exceptions, such as the FEHB Program, USDA Mission Areas, agencies, and staff offices may not purchase health insurance to cover employees because health insurance is considered a personal expense of the employee, for which appropriated funds may not be obligated, and because the Federal Government is self-insured.

- (4) Medical expenses are not payable if the employee incurred them while on annual leave, other leave, or otherwise not in TDY status.

b. MEDEVAC Expenses

- (1) In situations where, local medical facilities are inadequate to provide required services and MEDEVAC is approved by the DOS Medical Director or designee, USDA Mission Areas, agencies, and staff offices may pay for MEDEVAC in accordance with FAM requirements and procedures and without regard to otherwise applicable limitations in the *Federal Travel Regulation* (see also [16 FAM 310, General](#); [22 U.S.C. 4081\(5\)](#)).
- (2) Payment of MEDEVAC expenses by USDA Mission Areas, agencies, and staff offices will depend upon the type of care needed (e.g., obstetrical, dental) and the employee's compliance with required FAM procedures, including travel authorizations.
- (3) Subject to certain statutory exceptions, such as the FEHB Program, USDA Mission Areas, agencies, and staff offices may not purchase or reimburse employees for the cost of MEDEVAC insurance because it is considered a personal expense of the employee, for which appropriated funds may not be obligated, and because the Federal Government is self-insured.
- (4) USDA employees who mix annual leave in conjunction with official Government travel will need to purchase their own MEDEVAC insurance if they wish to be covered by such insurance during their annual leave and are personally responsible for the MEDEVAC coverage expenses during their annual leave.
- (5) To ensure a consistent approach to certifying MEDEVAC coverage, USDA employees must include the following information on all travel authorizations and DOS eCCs as required by DOS policy (12 STATE 98318):
 - (a) This language: "The United States Department of Agriculture is self-insured for medical evacuation (MEDEVAC) coverage and will reimburse any expenses associated with medical evacuation (MEDEVAC) recommended by DOS, Office of Medical Services (MED) for all international travelers who are traveling on USDA travel orders. If MEDEVAC is authorized in accordance with [16 FAM 315.1](#), *Medical Evacuations (MEDEVACS) to the United States*, the U.S. Embassy will coordinate the MEDEVAC." In addition, some embassies may require the traveler to provide point of contact (POC) information for their Mission Area, agency, or staff office in the eCC request.
 - (b) The POC information for the appropriate Mission Area, agency, or staff office or official who can make financial arrangements on behalf of the Mission Area, agency, or staff office, if necessary. Approval of MEDEVAC shall not be dependent upon such funding being in place at the time of MEDEVAC.

- (c) MEDEVAC must be authorized by the DOS Medical Director or designee in accordance with 16 FAM 315.1.
- (6) DOS - Bureau of Medical Services (MED) recommends that travelers carry a copy of their authorization, which includes the information above, and provide a copy to their Embassy POC.

5. PROCEDURES

The Embassy closest to the employee's location will help the employee find medical treatment. If the treatment is out-patient, all expenses are covered by the employee and their insurance.

- a. If overnight hospitalization is required, the Embassy will guarantee payment.
- b. The home agency must send the requested funds to the Embassy either through:
 - (1) A fund cite cable that is generated in the International Cable System (INCA) which is available USDA-wide for worldwide usage; or
 - (2) A Financial Management Officer (FMO) funding advisement letter processed in the International Management Administrative Resource Tool (iMART – Foreign Agriculture Service (FAS) only).

The cable or the letter must identify the Mission Area, agency, or staff office's fund source along with the appropriate accounting to cover the expenses related to the MEDEVAC or medical treatment of the employee. A headquarters (HQ) POC should be included on the cable. This should not delay providing MEDEVAC or medical treatment to the employee.

- c. The Embassy will pay for all medical expenses incurred by the employee and the Mission Area, agency, or staff office is responsible for reimbursing the Embassy. The employee in turn is responsible for reimbursing their Mission Area, agency, or staff office for all payments received from their FEHB provider. Any medical expenses not covered by the employee's FEHB plan will be paid by the Mission Area, agency, or staff office, except for cost-sharing (deductibles, copayments, and coinsurance) covered by the employee's FEHB plan.
- d. Any individual who does not provide a fund cite or fiscal data for payment of hospital bills may be asked to use a personal credit card for guarantee of payment for hospital admission.
- e. If an employee is not covered by primary health insurance, the employee is liable for all medical expenses, including both inpatient and outpatient treatment.

- f. Employees are advised to become familiar with specific Embassy policy prior to travel.

6. ROLES AND RESPONSIBILITIES

- a. The FAS Chief Operating Officer (COO) will:
 - (1) Be responsible for all aspects of this directive;
 - (2) Serve as the primary Departmental-level contact for questions regarding the policies of this DR; and
 - (3) Update this DR and any accompanying guidance, as appropriate.
- b. Assistant Secretaries, Under Secretaries, and Directors of Staff Offices of the Secretary will:
 - (1) Ensure that their Mission Areas, agencies, and staff offices comply with this DR; and
 - (2) Ensure that applicable USDA Mission Area, agency, and staff office policies and guidance are consistent with this DR.
- c. USDA Agency Heads will:
 - (1) Ensure that agency employees who are covered by the scope of this DR are aware of the policies in the DR and the procedures for finding medical treatment and payment for medical services; and
 - (2) Provide agency employees who are covered by the scope of this DR with any necessary guidance and training to understand and fulfill their responsibilities under this DR and any agency-specific guidance on payment of medical expenses of employees on overseas TDY.
- d. Managers and Supervisors covered under the scope of this DR and/or have management or supervisory responsibilities for employees covered under the scope of this DR, will:
 - (1) Be aware of and uphold the principles contained in this DR;
 - (2) Implement and comply with this DR as it pertains to their area of management or supervision; and
 - (3) Ensure that their employees are informed about this DR.
- e. Employees will:

- (1) Be aware of the benefits payable under their health insurance plans, particularly for medical expenses incurred overseas;
- (2) Be aware of the principles contained in this DR; and
- (3) Comply with this DR and any additional Departmental, Mission Area, agency, or staff office-specific policies and guidance pertaining to international travel.

7. INQUIRIES

All questions regarding this DR should be directed to the FAS, Office of the Chief Operating Officer (OCOO); Room 4121 South Building, Washington, D.C., 20250 or call (202) 720-2551 or email overseas-medical-emergencies@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

CFR	Code of Federal Regulations
COO	Chief Operating Officer
DOS	Department of State
DR	Departmental Regulation
eCC	e-Country Clearance
FAH	Foreign Affairs Handbook
FAM	Foreign Affairs Manual
FAS	Foreign Agricultural Service
FECA	Federal Employees' Compensation Act
FEHB	Federal Employees Health Benefits [Program]
FMO	Financial Management Officer
HQ	Headquarters
iMART	International Management Administration Resource Tool
INCA	International Cable System
MED	Office of Medical Services (at the Department of State)
MEDVAC	Medical Evacuation
OCOO	Office of the Chief Operating Officer
OFSO	Office of Foreign Service Operations
POC	Point of Contact
TDY	Temporary Duty Assignment
U.S.C.	United States Code
USDA	United States Department of Agriculture

APPENDIX B

DEFINITIONS

- a. Embassy. An embassy is the headquarters for U.S. Government representatives serving in a foreign country. It is normally led by an ambassador, who is the U.S. President's representative to the host country. An embassy is normally located in the capital city.
- b. Funds Cite cable. The fund cite is that of the fund which was used to finance the acquisition of the specific equipment item.
- c. For purposes of this DR, “employee” refers to USDA employees, contractors, fellows, scholars, summer interns, and other categories of employees who are on official USDA travel overseas.

APPENDIX C

AUTHORITIES AND REFERENCES

- a. *Foreign Service Act of 1980*, [22 U.S.C. 3901](#) et seq., specifically:
 - (1) [22 U.S.C. 3922\(a\)\(2\)](#): Authorizes the Secretary of Agriculture to utilize the foreign service personnel system with respect to all USDA personnel;
 - (2) [22 U.S.C. 3927\(b\)](#): Requires Executive Branch Agencies having employees abroad to ensure those employees comply fully with all applicable directives of the Chief of Mission;
 - (3) [22 U.S.C. 4081](#), *Travel and related expenses*: Authorizes the Secretary of State to pay for employees' medical evacuation (MEDEVAC) and other travel costs; and
 - (4) [22 U.S.C. 4084](#), *Health care program*: Authorizes the Secretary of State to pay the costs of employees' medical treatment while located overseas.
- b. The Department of State, *Foreign Affairs Manual (FAM)*, Volume 16, Parts 300, *Medical Travel* and 500, *Payment of Medical Services* contain directives regarding the payment of medical expenses and medical travel expenses for Civil Service and Foreign Service employees working overseas. Both parts have been adopted by USDA with respect to its Foreign Service Corps. (16 FAM 122, *Eligibility*)
 - (1) [3 FAM 3631.2](#), Policy
 - (2) [16 FAM](#), Medical
 - (3) [16 FAM 122](#), Eligibility
 - (4) [16 FAM 300](#), Medical Travel
 - (5) [16 FAM 310](#), General
 - (6) [16 FAM 312](#), Eligibility
 - (7) [16 FAM 315](#), Types of Medical Travel
 - (8) [16 FAM 315.1](#), Medical Evacuations (MEDEVACS) to the United States
 - (9) [16 FAM 500](#), Payment of Medical Expenses
 - (10) [16 FAM 520](#), Responsibility for Payment of Medical Expenses

- (11) [16 FAM 521](#), Applicability
- (12) [16 FAM 522](#), Responsibility
- (13) [16 FAM 531](#), Limitations
- (14) Department of State, *Medical Requirements for E-Country Clearance*
- c. 41 Code of Federal Regulations (CFR) 300, *Federal Travel Regulation*, [Chapter 301](#), *Temporary Duty (TDY) Travel Allowances*
- d. [41 CFR § 300-30.4](#), *When an illness or injury occurs on TDY, what expenses may be allowed?*
- e. Department of Labor, *Federal Employees' Compensation Act* ([FECA](#)) web page
- f. Department of State, [Insurance Providers for Overseas Coverage](#) web page
- g. Department of State, Memorandum, 12 STATE 98318
- h. Office of Personnel Management, *Federal Employees Health Benefits* ([FEHB](#)) Program web page

APPENDIX D

FREQUENTLY ASKED QUESTIONS

1. Q: What is the Foreign Affairs Manual?

A: The [*Foreign Affairs Manual \(FAM\)*](#) and associated [*Foreign Affairs Handbooks \(FAH\)*](#) are a single comprehensive and authoritative source for the organization structures, policies, and procedures that govern the operations of the Department of State, the Foreign Service and, when applicable, other Federal agencies. The FAM (which generally contains policy) and the FAHs (which generally contain procedures) together convey information to Department of State staff and contractors so they can carry out their responsibilities in accordance with statutory, executive, and, Departmental mandates.
2. Q: Who is responsible for paying MEDEVAC expenses incurred by an employee while in TDY status?

A: USDA agencies will pay MEDEVAC expenses not covered by the employee's insurance. An individual who is covered by the DOS medical program as defined in [*16 FAM 122, Eligibility*](#), is eligible to receive medical travel, per diem, and/or allowances as set forth in [*16 FAM 312, Eligibility*](#).
3. Q: Who determines whether MEDEVAC is necessary?

A: MEDEVAC must be authorized by the DOS, Medical Director or designee in accordance with 16 FAM 315.1.
4. Q: Is primary health insurance required when on official travel?

A: While it is not required, obtaining primary health insurance coverage is strongly encouraged. This is because USDA Mission Areas, agencies, and staff offices will serve as the secondary payer for hospitalization and for outpatient expenses related to a hospitalization. (Employees are responsible for all other outpatient medical expenses, whether or not they have primary health insurance coverage.) Employees who do not have primary health insurance or whose insurer refuses to act as a primary payer will be personally responsible for all medical costs incurred abroad while in TDY status as set forth in 16 FAM 521, including hospitalization and related outpatient expenses. Employees are strongly encouraged to understand their health insurance coverage.
5. Q: When will USDA Mission Areas, agencies, and staff offices serve as the secondary payer for medical expenses?

A: With respect to employees who have primary health insurance coverage, USDA Mission Areas, agencies, and staff offices will serve as a secondary payer for

expenses not covered by the primary insurer, to the extent and under the conditions as set forth in 16 FAM 521 and 522.

6. Q: If an employee on TDY is hospitalized while on official travel, is there any provision to cover the cost of the hospital?

A: Yes. If the traveler has health insurance USDA Mission Areas, agencies, and staff offices will serve as the secondary payer for hospitalization and related expenses. Travelers without health insurance are personally responsible for all of their medical expenses. (Ref FAQ 4)

7. Q: Are USDA Mission Areas, agencies, and staff offices responsible for paying for outpatient services?

A: Employees are responsible, either directly or through their health insurance, for outpatient services that are not related to a hospital stay. (16 FAM 521(a)).

8. Q: What if USDA Mission Areas, agencies, and staff offices serve as the first payer for hospitalization expenses incurred by the employee?

A: In the event a USDA Mission Area, agency, or staff office covers payment for an employee's initial hospitalization, the employee must reimburse the USDA Mission Area, agency, or staff office either directly or by insurance payment, minus the expense amount the U.S. Government is obligated to pay under 16 FAM.

9. Q: Do employees have access to DOS, MED for routine issues (e.g., vaccinations, minor injuries, consultations) during TDY?

A: Yes, provided they meet the eligibility requirements stated in 16 FAM 122.

10. Q: How do the DOS MED units support employees in need of medical treatment while on overseas TDY?

A: All short-term (less than 30 days) Government TDY employees may access the Health Unit for urgent care; they do not require a clearance for access. TDY employees who spend 30 consecutive days or more at the assignment location must have a valid medical clearance.

11. Q: Are USDA employees covered by Workers' Compensation while on overseas TDY?

A: Yes. USDA employees are covered by Workers' Compensation. Under the [*Federal Employees' Compensation Act \(FECA\)*](#), Workers' Compensation benefits compensate employees for loss in wage earnings; medical expenses; loss of life; and physical impairments or dismemberment from an injury arising out of or in the course of work as stated in [*3 FAM 3631.2, Policy*](#).

12. Q: Does DOS provide a list of available insurance and MEDEVAC providers?

A: Yes, available at the Department of State, [*Insurance Providers for Overseas Coverage*](#) web page.

APPENDIX E

POINTS OF CONTACT

Overseas Posts

USDA employees on TDY overseas may at times need emergency medical assistance. Travelers should first contact the Medical Unit at the local U.S. Embassy, Consulate, or Diplomatic Mission (see: <https://www.usembassy.gov>).

The U.S. Embassy, State Med Unit, who will provide the TDY traveler with information on health care providers.

Travelers should also contact one of the following representatives from the USDA Foreign Agricultural Service staff in Washington, DC.

Washington, D.C.

Assistant Deputy Administrator
Office of the Administrator
Foreign Agricultural Service
United States Department of Agriculture

Director
International Services Division
Office of Foreign Service Operations (OFSO)
Foreign Agricultural Service
United States Department of Agriculture

Deputy Director
International Services Division
Office of Foreign Service Operations (OFSO)
Foreign Agricultural Service
United States Department of Agriculture

The most current Points of Contacts list is available at: <https://www.fas.usda.gov/medical-emergency-contacts>.